

Fundamental Duties

(Part-IV-A: Article 51A)

Fundamental Duties encourage responsible citizenship, urging individuals to respect national symbols, uphold sovereignty, and contribute to national welfare. The original constitution of India contained only the **Fundamental Rights** and **not the Fundamental Duties**.

FEATURES OF FUNDAMENTAL DUTIES

- **Swaran Singh Committee:** In 1976, first recommended by the **Swaran Singh Committee**; its need was felt during the internal emergency (1975-77). The committee suggested **eight Fundamental Duties**.
- **42nd CAA, 1976:** Added **Part IV-A, Art 51A** to the Constitution containing **ten** fundamental duties of citizens, inspired by the Soviet (USSR) Constitution. **Rights are correlative with duties**, [UPSC 2017]
- **Total Duties:** Originally 10, with one added by the **86th Amendment Act, 2002**, totalling **11 duties**.
- **Significance:** Encourage responsible citizenship and contribute to national welfare and integrity.
- **Legal Implications:** Help courts assess the constitutional validity of laws. Laws promoting Fundamental Duties may be deemed "reasonable" under Articles **14** and **19**.
- **Applicability:** Confined to **citizens only**, not foreigners.
- **Non-justiciable** by courts. However, **Parliament can enforce this through suitable legislation**. [UPSC 2017]
- **Exclusions:** **Duty to pay taxes** and **Duty to vote** are **not** part of FDs.
- **International Comparison:** The Japanese Constitution uniquely includes a list of citizens' duties.
- **Verma Committee on Fundamental Duties of the Citizens (1999):**
 - Identified the existence of legal provisions for the implementation of some FDs.
 - ◆ Ex: Wildlife Protection Act, 1972.

- Recommended reorienting approaches to the school curriculum and teacher's education programmes and incorporating FDs in higher and professional education.

LIST OF FUNDAMENTAL DUTIES

It shall be the duty of every citizen of India-

1. **Respect:** Abide by the Constitution and respect its ideals, institutions, the National Flag, and National Anthem (Article 51A(a)). [UPSC 2011]
2. **Cherish:** Follow the noble ideals that inspired the freedom struggle (Article 51A(b)).
3. **Uphold:** Protect the sovereignty, unity, and integrity of India (Article 51A(c)). [UPSC 2015]
4. **Defend:** Defend the country and render national service when called upon (Article 51A(d)).
5. **Promote:** Promote harmony and brotherhood among all people, transcending religious, linguistic, and regional diversities; renounce practices derogatory to women's dignity (Article 51A(e)).
6. **Preserve:** Value and preserve the rich heritage of India's composite culture (Article 51A(f)). [UPSC 2012]
7. **Protect:** Improve the natural environment, including forests, lakes, and wildlife; show compassion for all living creatures (Article 51A(g)).
8. **Develop Scientific Temper:** Develop a scientific temper, humanism, and a spirit of inquiry and reform (Article 51A(h)). [UPSC 2012/ 2012]
9. **Safeguard Public Property:** Protect public property and abjure violence (Article 51A(i)). [UPSC 2011]
10. **Strive for Excellence:** Strive for excellence in all activities, ensuring national progress (Article 51A(j)). [UPSC 2012]
11. **Provide Opportunities:** Provide educational opportunities for children aged 6 to 14 years (as added by the 86th Constitutional Amendment Act, 2002) (Article 51A(k)).

Important Cases Related to Fundamental Duties

- **Minerva Mills Ltd. vs. Union of India (1980):** Upheld the **42nd Amendment** but stated Fundamental Duties are **not enforceable** by courts.
- **Supreme Court (1992):** In determining the constitutional validity of any law, if the law in question seeks to give effect to FDs, it may consider such law to be '**reasonable**' in relation to **Art. 14** or **Art. 19** and thus save such law from unconstitutionality.
- **M.C. Mehta vs. Union of India (2000):** Mandated **one-hour lectures** on environmental protection in schools; made it part of the curriculum.
- **Ramlila Maidan Incident vs. Home Secretary (2012):** Affirmed **freedom of speech** as a fundamental right, subject to reasonable restrictions; highlighted the **duty to respect the Constitution**.

